



File No.: EXP202310825

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant), on September 9, 2021, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against CLUB NÁUTICO EL ESTACIO, with NIF G73044893 (hereinafter, the respondent). The grounds for the complaint are as follows: The complainant states that the respondent has republished on its website, open to any user and without access restrictions, the Minutes of the Board of Directors held on ***DATE.1, of the Club Náutico El Estacio, which expose his personal data, such as his name, surname, and the circumstance that “(...)”, which constitutes a recurrence, since the aforementioned Club was reported to the Agency for the same facts, on that occasion for the publication of Minutes dated August 22, 2020. Along with the notification, he provides the Minutes of the Board of Directors held on ***DATE.1, of the Club Náutico “El Estacio.”

SECOND: The Admission Area of the General Subdirectorate of Inspection of the Spanish Agency for Data Protection has verified that the Minutes of the Board of Directors held on ***DATE.1, of the Club Náutico El Estacio are accessible on the website of the respondent entity.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on October 5, 2021, the complaint was forwarded to the respondent, for it to analyze and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, on October 16, 2021, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on October 29, 2021. In this notification, he was reminded of his obligation to interact electronically with the Administration, and he was informed of the means of access to such notifications, reiterating that, henceforth, he would be notified exclusively by electronic means.

No response has been received to this forwarding letter.

FOURTH: On December 9, 2021, in accordance with Article 65 of the LOPDGDD, it was communicated that the complaint filed by the complainant was admitted for processing.

FIFTH: On September 7, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR. Notification was attempted via postal mail, but it was returned marked “absent during delivery,” which is why it was notified by publication in the Official State Gazette on October 13, 2023, in accordance with Article 44 of Law 39/2015 of October 1 on the common administrative procedure of Public Administrations.

SIXTH: On December 18, 2023, the instructor of the procedure, following the link: Club Náutico El Estacio - Home Page (clubnauticoelestacio.com), accessed the website of CLUB NAUTICO EL ESTACIO, which allowed him open and unrestricted access to the Minutes of the Board of Directors held on ***DATE.1, of the Club Náutico “El Estacio,” in which personal data of the respondent, such as

name and surname, are exposed, thus confirming the ongoing nature of the infringements committed that led to the initiation of this sanctioning procedure.

SEVENTH: On December 19, 2023, a proposal for resolution was made, which was notified on the same day, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), first by postal notification, but since it was returned marked "absent during delivery," it was proceeded to electronic notification, which was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, on January 9, 2024, as stated in the certificate in the file.

In this proposal for resolution, the following was proposed:

That the Director of the Spanish Agency for Data Protection sanction CLUB NAUTICO EL ESTACIO, with NIF G73044893, for an infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and

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Article 83.4 of the GDPR, with a fine of €3,000 for the infringement of Article 5.1 f) of the GDPR, regarding the violation of the principle of confidentiality, and €2,000 for the infringement of Article 32 of the aforementioned GDPR, regarding the security of the processing of personal data.

That the Director of the Spanish Agency for Data Protection orders CLUB NAUTICO EL ESTACIO, with NIF G73044893, to, pursuant to Article 58.2.d) of the GDPR, within one month, prove that it has proceeded to immediately remove from its website the Minutes of the Board of Directors held on ***DATE.1, as well as to inform this Agency within one month about the measures adopted to prevent documents containing personal data from being published again on its website without measures that prevent general access to documents containing personal data.

EIGHTH: The party being claimed has not presented any allegations in response to the initiation agreement nor against the proposed resolution.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The party being claimed has published on its website, open to any user and without access restrictions, the Minutes of the Board of Directors held on ***DATE.1, of the Club Nautico el Estacio, in which the personal data of the claimant, such as their name and surname, are exposed.

SECOND: The Subdirectorate of Data Inspection accessed the website of the claimed entity again on December 18, 2023, following the link: Club Náutico El Estacio - Home Page (clubnauticoelestacio.com), verifying that the minutes of the Board of Directors held on ***DATE.1 are still accessible.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

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Preliminary Issues

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since CLUB NÁUTICO EL ESTACIO, for the development of its social activities, processes personal data of its members.

Specifically, the incorporation of the minutes subject to the complaint to the Club Nautico's website is noted, and this constitutes data processing.

It carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR: "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed."

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach, since by publishing the minutes of the Club's Board of Directors on the website, information and personal data have been disclosed to third parties, such as their name, surname, and the circumstance that (...).

According to the GT29, a "Confidentiality Breach" occurs when there is an unauthorized or accidental disclosure of personal data, or access to it.

It should be noted that the identification of a security breach does not imply the direct imposition of a sanction by this Agency, as it is necessary to analyze the diligence of controllers and processors and the security measures applied.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR. In turn, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which regulate the security of processing, the notification of a personal data security breach to the supervisory authority, as well as the communication to the data subject, respectively.

III

Article 5.1.f) of the GDPR

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Article 5.1.f) of the GDPR establishes the following:

"Article 5 Principles relating to processing:

1.

Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures ('integrity and confidentiality')."

In relation to this principle, Recital 39 of the aforementioned GDPR states:

"[...] Personal data must be processed in a manner that ensures adequate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and the equipment

used for processing.”

The documentation in the file provides clear indications that the respondent violated Article 5.1.f) of the GDPR, principles relating to processing.

The AEPD verifies on December 18, 2023, that access to the content of the Minutes is possible by typing the Club's electronic address into the browser, thus confirming the publication on the website of personal data of the complainant, such as their name, surname, and the circumstance of “(...)”, allowing unauthorized access to such data by third parties.

In accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to the respondent, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

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In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein shall be considered very serious and shall be subject to a limitation period of three years, particularly including the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

V

Article 32 of the GDPR

Article 32 of the GDPR, concerning the security of processing, establishes the following:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the

unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller.”

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instructions of the controller, unless required to do so under Union or Member State law.”

The facts revealed indicate a lack of technical and organizational measures that allowed the display of personal data of the complainant, resulting in a lack of diligence on the part of the controller, permitting unauthorized access by third parties.

It should be noted that the GDPR in the cited provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures should be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same vein, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation concerning the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be considered, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly susceptible to causing physical, material, or immaterial harm.”

The responsibility of the respondent is determined by the lack of security measures, as it is responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure an adequate level of security concerning the risk to ensure the confidentiality of the data, restoring its availability and preventing access to it in the event of a physical or technical incident.

In accordance with the available evidence, it is considered that there is sufficient evidence regarding the absence of adequate security measures.

The known facts constitute an infringement attributable to the respondent for violation of Article 32 of the GDPR.

Additionally, there is a similar precedent in this AEPD referenced as Procedure No.: PS/00044/2021, resolved by the director of the AEPD on July 15, 2021, in the following terms:

“IMPOSE on CLUB NÁUTICO EL ESTACIO, with NIF G73044893, for an infringement of Article 32 of the GDPR, and Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €3,000 (three thousand euros).”

However, the security breach has recurred for similar reasons.

Therefore, the AEPD considers that the respondent does not have measures in place to ensure that the document incorporated into its website does not include personal data, as it does not subject the document to an anonymization process before its dissemination, nor does it establish any access limitations to the content of its website in such a way that this information is only available to authorized persons.

VI

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €10,000,000 or, in the case of an undertaking, an amount equivalent to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

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"Based on the provisions of Article 83.4 of Regulation (EU) 2016/679, the following violations are considered serious and will be subject to a two-year statute of limitations for substantial breaches of the articles mentioned therein, particularly the following:

f) The failure to adopt appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

VII

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

Sanction for the infringements of Articles 5.1.f) and 32 of the GDPR.

In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction for the infringement of Article 5.1.f) and the infringement of Article 32 of the GDPR, it is necessary to graduate the fine taking into account:

As an aggravating factor:

Article 83.2.e) GDPR: any previous infringement committed by the controller or processor: when the events that constitute the current infringement of Article 5.1.f) and the infringement of Article 32 of the GDPR occurred, the party being claimed was fully aware of the unlawfulness of its conduct by publishing personal data on its website without the consent of the data subjects.

On the other hand, it also confirms that, despite being aware of this fact and, in some cases, despite the time elapsed, it has not adopted the necessary measures to be in a position to comply with the GDPR. For this reason, the history of infringements of the claimed party affects the culpability and unlawfulness of its conduct.

Article 76.2.b) LOPDGDD: "The connection of the infringer's activity with the processing of personal data."

The activity of the claimed entity requires continuous processing of personal data. Furthermore, the claimed entity carries out a high volume of personal data processing for the development of its activity.

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Considering the factors presented, the initial assessment of the amount of the fine is €3,000 for the

infringement of Article 5.1 f) of the GDPR, regarding the violation of the principle of confidentiality, and €2,000 for the infringement of Article 32 of the aforementioned GDPR, regarding the security of personal data processing.

VIII

Measures to be imposed

The Spanish Data Protection Agency orders the respondent to, within one month, provide evidence of having immediately removed from its website the minutes of the Board of Directors meeting held on ***DATE.1, as well as to inform this Agency within one month about the measures adopted to prevent documents containing personal data from being published again on its website without measures that prevent general access to documents containing personal data.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on CLUB NAUTICO EL ESTACIO, with NIF G73044893, for an infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR, a fine of €3,000 for the infringement of Article 5.1 f) of the GDPR, regarding the violation of the principle of confidentiality, and €2,000 for the infringement of Article 32 of the aforementioned GDPR, regarding the security of personal data processing.

SECOND: TO ORDER CLUB NAUTICO EL ESTACIO, with NIF G73044893, that pursuant to Article 58.2.d) of the GDPR, within one month, provide evidence of having immediately removed from its website the minutes of the Board of Directors meeting held on ***DATE.1, as well as to inform this Agency within one month about the measures adopted to prevent documents containing personal data from being published again on its website without measures that prevent general access to documents containing personal data.

THIRD: TO NOTIFY this resolution to CLUB NAUTICO EL ESTACIO.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b)

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of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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